Sl. No.	Case (Year)	Supreme Court Judgement
2.	State of Bombay vs. F.N. Balsara (1951)	It declared eight sections of the Bombay Prohibition Act (1949) as ultra-vires on the ground of infringement of the fundamental rights. It held that the void provisions did not affect the validity of the entire Act.
3.	R.M.D. Chamarbaugwalla vs. Union of India (1957)	It held that the provisions of the Prize Competitions Act (1955) were severable and struck down those provisions which related to competitions involving skill. In this case, the validity of Section 2(d) of the Act, which included competition of gambling as well as those involving skill, was challenged. According to Article 19(1)(g), the Parliament can restrict prize competitions only of a gambling nature but not those involving skill.
4.	Minerva Mills vs. Union of India (1980)	It struck down sections 4 and 55 of the 42nd Amendment Act (1976) for being beyond the amending power of the Parliament. It declared the rest of the Act as valid.
5.	Kihoto Hollohan vs. Zachillhu (1992) (Popularly known as the Defection case)	It declared paragraph 7 of the Tenth Schedule (which was inserted by the 52nd Amendment Act, 1985) as unconstitutional for violating the provision under Article 368(2)[6]. It upheld the rest of the Tenth Schedule (i.e., Tenth Schedule minus paragraph 7 is valid).

DOCTRINE OF WAIVER

1. Meaning of the Doctrine

The doctrine of waiver is based on the premise that a person who is entitled to a right or privilege is at liberty to waive or give up that right or privilege. It is a voluntary renunciation of a known right or privilege.

The doctrine of waiver is defined in the following way[7]:

“Waiver is an intentional relinquishment of a right. It involves conscious abandonment of an existing legal right, advantage, benefit, claim or privilege, which except for such a waiver, a party could have enjoyed. In fact, it is an agreement not to assert a right. There can be no waiver unless the person who is said to have waived, is fully informed as to his rights and with full knowledge about the same, he intentionally abandons them.”

It must be noted here that the doctrine of waiver is not applicable to the fundamental rights in India. In other words, a citizen can not waive his fundamental rights in India. On the other hand, the doctrine of